

1.

CASE #	CASE NAME	HEARING NAME
CVRI2506858	MAHDAWI vs AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL PLAINTIFF MAHMOUD MAHDAWI'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET TWO

Tentative Ruling:

In response to the motion, Plaintiff served supplemental responses. (Declaration of Norman Hanish, ¶¶ 3-4.) The motion is moot. To the extent the supplemental responses are deficient, Defendant must meet and confer with Plaintiff regarding those responses and file a new motion. The court does not issue sanctions here.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506858	MAHDAWI vs AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL PLAINTIFF MAHMOUD MAHDAWI'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO AND SANCTIONS

Tentative Ruling:

In response to the motion, Plaintiff served supplemental responses. (Declaration of Norman Hanish, ¶¶ 3-4.) The motion is moot. To the extent the supplemental responses are deficient, Defendant must meet and confer with Plaintiff regarding those responses and file a new motion. The court does not issue sanctions here.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600282	WIKOFF vs HYUNDAI MOTOR AMERICA, A CALIFORNIA CORPORATION	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Request for Judicial Notice

Both defendant's and plaintiffs' requests for judicial notice are granted pursuant to Evidence Code section 452, subdivision (b).

Evidentiary Objections

Plaintiffs object to the Decl. of Ali Ameripour [“Ameripour Decl.”] ¶ 4, attaching the Warranty Handbook, and Ex. 2, the Warranty Handbook itself, on the grounds it lacks foundation and is hearsay. **These objections are sustained.**

Defendant argues it can compel arbitration under the arbitration provision contained in the Warranty Handbook. However, as set forth above, the Court sustained Plaintiffs’ objections to the Warranty Handbook, so there is no evidence before the Court of any arbitration agreement. Accordingly, **the motion is denied.**